

HOUSE No. 1988

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission regarding the privacy of sensitive information in legal documents.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/17/2025</i>

HOUSE No. 1988

By Representative Scanlon of North Attleborough, a petition (accompanied by bill, House, No. 1988) of Adam J. Scanlon for an investigation by a special commission (including members of the General Court) relative to the privacy of sensitive information in legal documents. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission regarding the privacy of sensitive information in legal documents.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There shall be a commission to study and make recommendations to the
2 joint committee on the judiciary, the Chief Justice of the Trial Court, and the Court
3 Administrator for the Trial Court regarding the accessibility and privacy of sensitive information
4 in court documents.

5 SECTION 2. The commission shall consist of 2 members appointed by the senate
6 president, 1 of whom shall be the senate chair of the joint committee on the judiciary, and 1 of
7 whom shall serve as co-chair of the commission; 2 members appointed by the speaker of the
8 house of representatives, 1 of whom shall be the house chair of the joint committee on the
9 judiciary, and 1 of whom shall serve as co-chair of the commission; 1 member appointed by the
10 minority leader of the senate; 1 member appointed by the minority leader of the house of
11 representatives; the secretary of public safety and security or a designee; the chief justice of the

trial court or a designee; the court administrator for the trial court or a designee; 2 members appointed by the governor, 1 of whom shall be an expert on inter-partner violence, abuse and harassment, and 1 of whom shall be an expert on transparency and public records laws; and 1 person appointed from each of the following organizations: the Massachusetts Chapter of the Association of Family and Conciliation Courts; the Mass Family Advocacy Coalition, the Massachusetts Bar Association; Jane Doe, Inc.

SECTION 3. The commission shall consider and make recommendations concerning whether and how certain sensitive information, including but not limited to residential and mailing addresses, financial and banking information, social security numbers, medical information, names and dates of birth of children, child custody agreement terms, child support agreement amounts, should be publicly accessible in legal documents in the court system. These recommendations shall include:

(i) whether any such information should or should not be accessible online;

(ii) whether any such information should or should not be accessible only by request in person at a courthouse, and what the conditions for such a successful request should be.

SECTION 4. The commission shall report its findings and recommendations to the joint committee on the judiciary, the Chief Justice of the Trial Court, and to the Court Administrator for the Trial Court on or before January 1, 2026.